Durably Sustainability Scan

Methodology summary — claim-risk screening

EmpCo / Directive (EU) 2024/825 • EU Green Claims Directive (2024) • EU Forced Labour Regulation (EU) 2024/3015 • EUDR • CSDDD • CSRD

Updated for Omnibus I (Directive 2026/470, in force 18 March 2026)

This is a claims-risk screening tool, not a legal opinion, certification or assurance. It identifies sustainability wording that may be too broad, insufficiently evidenced, consumer-facing under EmpCo, missing verified basis under the EU Green Claims Directive, exposed to forced-labour or deforestation-regulation risk, or contradicted by relevant external public-source context.

1. Purpose and regulatory lenses

Lens	How it is used in the scan
EmpCo / Directive (EU) 2024/825	Main green-claims lens. Prioritises generic environmental claims, climate-neutrality/offsetting claims, self-declared sustainability labels, broad absolute wording, future environmental-performance claims, comparative environmental claims, and legal compliance presented as a sustainability benefit.
EU Green Claims Directive (GCD, 2024 political agreement)	Product-specific green claims in B2C communications must be independently pre-verified before use. Applies to explicit comparative or absolute product-level environmental claims not covered by recognised EU ecolabel schemes. Stricter than EmpCo for verified product-level claims. Delegated acts in development.
EU Forced Labour Regulation / Regulation (EU) 2024/3015	Flags wording that may imply products, suppliers or value chains are free from forced labour, or that traceability, due diligence or import/export controls provide assurance beyond what is evidenced. Applies from 14 December 2027.
EU Deforestation Regulation / EUDR (Regulation (EU) 2023/1115)	Relevant for sourcing or deforestation-free claims involving cocoa, coffee, palm oil, soy, wood, rubber or cattle products. Requires deforestation-free status, traceability to plot level and due diligence statements. Compliance deadline for large operators under phased review.
CSRD / ESRS S1-S4 (post-Omnibus I: >1,000 emp AND >EUR450M turnover; FY2027)	Substantiation and consistency lens for social, supplier, human-rights, labour, community and customer-related claims. Checks whether claims are scoped, evidenced, measurable and balanced. First reporting from FY2027 under post-Omnibus I thresholds.
CSDDD (post-Omnibus I: >5,000 emp AND >EUR1.5B turnover; application from 26 July 2029)	Human-rights and supply-chain claims should be supported by risk-based due diligence, prevention, mitigation, tracking and remediation. Post-Omnibus I direct scope is limited to the largest companies; indirect exposure through customer due diligence requirements is commercially relevant regardless of direct scope.
OECD Guidelines / UNGPs / ILO / GRI	Responsibility-claim framework: identification, prevention, mitigation and accounting for adverse impacts. Worker claims checked against labour principles. Community and customer claims checked for specificity, balance and evidence.

2. What is retained as a claim signal

The scan does not operate as a simple keyword search. A word is retained only when the surrounding wording appears to make, imply or visually suggest an environmental or social performance claim. Neutral references such as *working with suppliers* or *backing local suppliers* are not retained unless they also imply assurance, compliance, certification, traceability, audits, due diligence, forced-labour controls or full supply-chain coverage.

Retained signal type	Examples	Why it matters
Generic environmental claims	eco-friendly, green choice, sustainable product, conscious collection, planet friendly	Can fall under EmpCo restrictions when the claim is not clearly specified or substantiated on the same medium.
Climate and offsetting claims	carbon neutral, climate neutral, carbon compensated, net zero product, reduced climate impact	Product-level neutrality or reduced-impact claims based on offsetting are high-priority EmpCo risk indicators.
Labels, badges, icons	eco label, green badge, certified sustainable, leaf/planet/recycled icons used as trust marks	Self-declared labels and visual trust marks can mislead if not based on independent or public-authority schemes. GCD raises the verification bar.
Deforestation-free / EUDR sourcing claims	deforestation-free, zero deforestation, EUDR compliant, cocoa traceability, palm oil traceability	Claims for in-scope commodities require verified geolocation data, traceability to plot level and due diligence statements.

Supplier / sourcing assurance	responsible sourcing, ethical sourcing, audited suppliers, traceable supply chain, all suppliers comply	May imply supply-chain control, audit quality or compliance that must be evidenced with scope, coverage, methodology and remediation.
Forced-labour assurance	forced-labour free, modern-slavery free, no forced labour, product traceability	Require robust traceability, risk assessment, mitigation, remediation and response procedures under Regulation (EU) 2024/3015.

3. Claim source and detected wording

Field in report	Meaning
Source	The website page, uploaded document or related checked page where the retained wording was found.
Exact retained wording	A short passage around the claim, normally one sentence. The scan avoids mixing long paragraphs with isolated words.
Trigger phrase(s)	The specific wording that made the passage relevant, for example carbon neutral, eco-friendly, responsible sourcing, deforestation-free or 100% recyclable.
Why it matters	A short explanation of the EmpCo, GCD, Forced Labour Regulation, EUDR or substantiation risk.
Suggested improvement	A practical rewrite principle: specify scope, evidence, method, time period, conditions and limitations.

4. Score calculation

The scan produces three scores: **Green score**, **Social score** and **Global score**. Scores are **risk scores, not performance scores**. Higher scores indicate higher claim-risk exposure or stronger need for legal, communication or evidence review.

Component	Weight (primary driver)	What increases the score
Claim wording severity	Primary driver (42%)	Direct EmpCo blacklist indicators, GCD-level green claims, climate/offsetting claims, labels, absolute wording, EUDR deforestation-free claims, forced-labour assurance, supplier assurance and multiple retained material claim signals.
Evidence-gap risk	Important driver (24%)	Limited visible substantiation, missing scope, missing methodology, missing dates, missing verification, missing supplier coverage or weak remediation evidence.
Negative external stakeholder context	Context driver (22%)	Relevant criticism, allegations, enforcement, litigation, NGO/union/regulator concerns or negative press linked to the same claim area.
Sector and channel sensitivity	Modifier (12%)	Consumer-facing communication, high-risk supply chains, fashion, food, retail, energy, chemicals, logistics or other sectors with elevated green/social claim exposure.

The calculation is **intentionally conservative**. A single isolated wording signal normally creates a limited or medium concern. High or very high scores require a stronger combination of severity, evidence gaps, regulatory relevance and/or retained negative external stakeholder signals.

Score band	Interpretation
0 - 29 Low	No material problematic claim retained or only limited wording risk visible.
30 - 49 Moderate	Some wording may need specification, evidence or clearer limits.
50 - 69 Elevated	Several claim signals, a direct regulatory indicator or weak substantiation should be reviewed.
70 - 84 High	Strong wording risk, evidence gaps and/or negative external stakeholder signals require priority review.
85 - 100 Very high	Reserved for multiple severe claim signals with strong external or regulatory context.

5. External stakeholder signals

Retained	Excluded
Media criticism, regulator action, court cases, investigations, NGO/union concerns, complaints, allegations, fines, sanctions, watchdog findings, negative stakeholder campaigns.	Company websites, sustainability reports, annual reports, ESG policies, supplier policies, codes of conduct, corporate press releases, awards, positive partnerships, brand campaigns and neutral business news.

6. Limits of the scan

The scan is a structured screening and prioritisation tool. It does not determine whether greenwashing or social washing legally occurred. Final assessment requires human review of the complete communication, applicable law, product context, evidence files, claim approval process, language versions and jurisdiction-specific enforcement practice.

The tool is most useful before publication, campaign launch, website update, packaging change, sustainability report publication or supplier-claim reuse. It helps teams identify claim passages that should be specified, evidenced, reformulated or escalated.

Omnibus I note. Directive 2026/470 (in force 18 March 2026) amended CSRD scope to companies with >1,000 employees AND >EUR450M net annual turnover (first reporting from FY2027) and CSDDD scope to >5,000 employees AND >EUR1.5B net worldwide turnover (application from 26 July 2029). References in this scan to CSDDD and CSRD thresholds reflect these post-Omnibus figures.